

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ARVELL ROLLINS

Plaintiff,

SUMMONS

against-

Index No.

NEW YORK CITY POLICE OFFICER MITCHELL,
114TH Precinct, in her individual official capacity as employee
of the City of New York, NEW YORK CITY POLICE OFFICER ,
JANE DOE, 114TH Precinct, in her individual official capacity
as employee of the City of New York, NEW YORK CITY POLICE LIEUTENANT
JOHN DOE, 114TH Precinct, in his individual official capacity
as employee of the City of New York,

Defendants.

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To the above-named Defendant:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York

January 25, 2023

Attorney(s) for the Plaintiff

Douglas G. Rankin, Esq.
Reg #2978831
175 Pearl Street, Suite 215
Brooklyn, New York 11201
Phone: (718) 858-3000
Fax: (718) 858-9615

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF QUEENS

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ARVELL ROLLINS

Plaintiff,

COMPLAINT

against-

Index No.

NEW YORK CITY POLICE OFFICER MITCHELL,
114TH Precinct, in her individual official capacity as employee
of the City of New York, NEW YORK CITY POLICE OFFICER ,
JANE DOE, 114TH Precinct, in her individual official capacity
as employee of the City of New York, NEW YORK CITY POLICE LIEUTENANT
JOHN DOE, 114TH Precinct, in his individual official capacity
as employee of the City of New York,

Defendant.

-----X

The Plaintiff, ARVELL ROLLINS, through his attorney Douglas G. Rankin, Esq., alleges the following, upon information and belief for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution against the police officer mentioned above in their individual official capacity as employee of the City of New York.
2. It is alleged that these defendants maliciously prosecuted, violating Plaintiff ARVELL ROLLINS' rights under the Fourth, Eighth and Fourteenth Amendments to the

United States Constitution.

3. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

STATUTE OF LIMITATIONS TOLLED

4. The statute of limitations period applicable to §1983 suits is three (3) years from date of accrual. The statutes of limitation were "tolled" in New York by Executive Order No. 202.8, issued by Governor Andrew M. Cuomo on March 20, 2020, in response to the COVID-19 pandemic. Over the next six-and-a-half months, that toll was renewed by further executive order every 30 days until, on October 4, 2020, the Governor issued Executive Order No. 202.67, announcing that the tolling order would be extended for only one more 30-day period "until November 3, 2020, and after such date [statutes of limitation] will no longer be tolled." On November 3, 2020, the Governor issued Executive Order No. 202.72, confirming that the tolling period would no longer be in effect beginning November 4, 2020. A total tolling period of 228 days. All criminal charges against Plaintiff was dismissed on or about June 20, 2019.

PARTIES

5. Plaintiff was at all material times a resident of Queens, New York and of proper age to commence this lawsuit.

6. Defendant New York City Police Officer Mitchell (hereinafter "Officer Mitchell") was at all times relevant to this complaint duly appointed Officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.

7. Defendant New York City Police Officer "Jane Doe" (hereinafter "Officer Doe") was at all times relevant to this complaint duly appointed Officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.

8. Defendant New York City Police Lieutenant "John Doe" (hereinafter "Lieutenant Doe") was at all times relevant to this complaint duly appointed Officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.

9. The City was at all material times the public employer of defendant named herein.

FACTUAL ALLEGATIONS

10. It is alleged that on or about March 18, 2017 at approximately 6:00 pm, while at a gathering in Astoria, Queens and subsequent to having attended a funeral, Plaintiff consumed a few drinks causing him to become intoxicated. Subsequently, at approximately 9:00 pm, Plaintiff

left the residence with another male individual, who drove the two men to burger king. The vehicle belonged to Plaintiff, it was a Nissan Xterra, an SUV. The Burger King was located at 21st street and Broadway in Astoria, Queens. The vehicle was parked in the parking lot of Burger King. They both entered burger king however Plaintiff proceeded to the restroom as the male friend entered the food line.

11. Upon exiting the restroom Plaintiff observed his male friend arguing with a male customer, which spilled out in the parking lot. Plaintiff did not follow the men outside, but instead chose to join the line and purchase food. Plaintiff paid and received his food to go in a bag. Upon exiting burger king, Plaintiff observed his male friend being placed under arrest.

12. The Officers proceeded to ask Plaintiff if the SUV belonged to him and whether they could search the vehicle. Plaintiff, who was intoxicated told the officers yes. Plaintiff recalled a female officer questioning him. Plaintiff recalls the officers opening the vehicle door and stopping Plaintiff before he got to the SUV. The Officers searched the vehicle while pulling things out. The Officers recovered what Plaintiff believed to be a knife, which Plaintiff believed had to do with the argument between the two males.

13. The female Officer proceeded to inquire whether Plaintiff had been drinking, which Plaintiff answered in the affirmative, The female Officer inquired whether Plaintiff drove, and Plaintiff stated that another male individual drove the vehicle to burger king. The female Officer, despite never having seen Plaintiff behind the wheel of the vehicle or having driven the vehicle, placed Plaintiff under arrest.

14. Plaintiff recalls a lieutenant at the 114th precinct questioning him regarding drugs and guns in Plaintiff's neighborhood. Plaintiff was accused of being drug trafficker and in possession

of guns and weapon. Plaintiff remained in police custody for approximately two days. Plaintiff was never charged with gun or weapon possession.

15. The female officer and male lieutenant proceeded to prosecute Plaintiff despite having no probable cause to arrest Plaintiff for said crime and allowed the district attorney's office to prosecute Plaintiff.

16. Plaintiff maintained his innocence and was acquitted at trial on or about June 20, 2019. Plaintiff, a truck driver, license was suspended for 6 months, and was forced to obtain a hardship license. Plaintiff was forced to appear in court regularly for more than 2 years, lost time from work, as well as overtime. Plaintiff was forced to hire a private attorney.

COUNT ONE

42 U.S.C. § 1983

Malicious Prosecution

Against Individual Defendant Officer Mitchell, Officer Jane Doe and Lieutenant John Doe

16. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

17. Defendants initiated a prosecution against Plaintiff ROLLINS.

18. Defendants lacked probable cause to believe the proceeding could succeed

19. Defendants acted with malice, and

20. The prosecution was terminated in Plaintiff ROLLINS' favor.

21. As a direct and proximate result of the malicious prosecution detailed above, Plaintiff ROLLINS sustained the damages herein alleged.

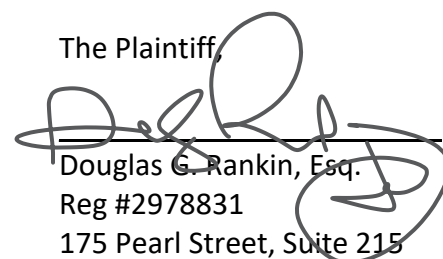
PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court:

- (a) Award compensatory damages against the
 - (b) Award punitive damages against the individual Defendants
 - (c) Award costs of this action to the Plaintiff.
 - (d) Award reasonable attorneys' fees and costs to the Plaintiff
- pursuant to 28 U.S.C. § 1988.

DATED: January 25, 2023
Brooklyn, New York

The Plaintiff,



Douglas G. Rankin, Esq.
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175 Pearl Street, Suite 215
Brooklyn, New York 11201
Phone: (718) 858-3000
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Defendant New York City Police Officer Mitchell
114th Police Precinct
34-16 Astoria Blvd
Astoria, NY 11103

Defendant New York City Police Officer "Jane Doe"
114th Police Precinct
34-16 Astoria Blvd
Astoria, NY 11103

Defendant New York City Police Lieutenant "John Doe"
114th Police Precinct
34-16 Astoria Blvd
Astoria, NY 11103

